

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Craig Anderson	Team: Squad #07	CCRB Case #: 201407039	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 06/19/2014 12:50 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/19/2015	Precinct: 113
Date/Time CV Reported Mon, 07/14/2014 3:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/14/2014 3:25 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Charles Lovelock	22435	942082	113 PCT
2. POM Derrick Coleman	22912	950219	113 PCT
3. POM Brian Volpi	21639	951404	113 PCT
4. Officers			
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Stephen Faber	03723	941721	113 PCT
2. POM Alexander Perez	07818	949468	113 PCT
3. POM James Indelicato	13208	950616	113 PCT
4. POM John Dammacco	05546	946892	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Volpi	Abuse: PO Brian Volpi entered and searched § 87(2)(b) in Queens.	A . Unsubstantiated
B . POM Derrick Coleman	Abuse: PO Derrick Coleman entered and searched § 87(2)(b) in Queens.	B . Unsubstantiated
C . POM Brian Volpi	Force: PO Brian Volpi pointed his gun at § 87(2)(b)	C . Exonerated
D . POM Brian Volpi	Force: PO Brian Volpi used physical force against § 87(2)(b)	D . Exonerated
E . POM Derrick Coleman	Force: PO Derrick Coleman used physical force against § 87(2)(b)	E . Exonerated
F . POM Charles Lovelock	Abuse: PO Charles Lovelock entered and searched § 87(2)(b) in Queens.	F . Exonerated
G . Officers	Abuse: Officers entered and searched § 87(2)(b) in Queens.	G . Exonerated

Officer(s)	Allegation	Investigator Recommendation
H . An officer	Force: An officer used physical force against § 87(2)(b)	H . Officer(s) Unidentified

Case Summary

On June 19, 2014 at approximately 12:50 a.m., PO Brian Volpi, PO Derrick Coleman, and PO Charles Lovelock approached § 87(2)(b)'s house at § 87(2)(b) in Queens. § 87(2)(g) The officers stated that they were conducting a car stop unrelated to this incident when PO Volpi saw § 87(2)(b) outside and suspected that he had a firearm, based on the way he reached into his waistband. PO Volpi told § 87(2)(b) to stop, but § 87(2)(b) ran into the basement of § 87(2)(b), leading the officers to suspect that he was an armed burglar. § 87(2)(b) however, said that he had been inside the house for roughly one hour when the police entered for an unknown reason, and that he had § 87(2)(b)'s permission to be there.

Before going in the house, the officers encountered § 87(2)(b)'s girlfriend, § 87(2)(b) behind the house and asked her what she was doing and whether she saw someone run inside the house. She stated that she was there to see a friend and that she did not see anyone run inside. The officers knocked on the front door of the house. § 87(2)(b) who lived at the house, and an unidentified woman who the officers believed was his girlfriend answered the door. The officers stated that they asked § 87(2)(b) if anyone was allowed to be in the basement, and he said no and gave them permission to enter. § 87(2)(g)

PO Coleman and PO Volpi entered the front door and headed down the interior basement steps (**Allegations A and B**). PO Lovelock waited outside with the civilians. The officers drew their guns as they walked down the stairs. There was no electric lighting in the basement, and the officers used their flashlights to see. The officers said in their interviews that they verbally identified themselves as police; § 87(2)(b) disputed this in his interview.

§ 87(2)(b) was hiding in a closet located on the opposite side of the staircase. PO Coleman opened this closet while looking for the suspect with a gun. PO Volpi allegedly pointed his gun at § 87(2)(b) when PO Coleman opened the closet (**Allegation C**). § 87(2)(b) ran out of the closet. He denied ever hitting the officers, but the officers said § 87(2)(b) first hit PO Coleman, then ran to PO Volpi and hit him, and hit both officers multiple times in the ensuing struggle. PO Coleman and PO Volpi both acknowledged punching § 87(2)(b) during this struggle (**Allegations D and E**). The officers were unsure how many times they punched § 87(2)(b). § 87(2)(b) § 87(2)(b) alleged that it was eight or more times.

During the struggle, PO Volpi opened an exterior door and yelled to PO Lovelock to call for additional units. The struggle moved out the exterior door onto cement stairs, where PO Volpi fell on top of § 87(2)(b). PO Volpi and PO Coleman eventually handcuffed § 87(2)(b) at the bottom of the stairs. PO Lovelock and several other officers entered the basement at that time (**Allegations F and G**). While unidentified officers were walking § 87(2)(b) up the cement stairs to a police car, one officer allegedly pushed him down so his head hit a cement stair (**Allegation H**). PO Volpi and PO Coleman were taken to § 87(2)(b) from the scene, and § 87(2)(b) was later taken to § 87(2)(b) (see encl.43A-E and 44A-E for the officers' aided reports and related documents and 33A for summary of all police documents. See medical records folder for § 87(2)(b)'s medical documents). When § 87(2)(b) was removed from the basement, PO Lovelock and unidentified officers searched the basement, and PO Lovelock recovered two daggers, which were in plain view near the closet. § 87(2)(b)

§ 87(2)(b) was in and near the exterior doorway. PO Lovelock accompanied PO Volpi and PO Coleman to the hospital.

Mediation, Civil and Criminal Histories

This case was ineligible for mediation due to § 87(2)(b)'s injuries and arrest. No notice of claim has been filed regarding this incident as of October 17, 2014, nearly one month after the 90-day filing deadline (encl. 50K). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) or § 87(2)(b) (encl. 6A-C). § 87(2)(b).
- PO Volpi has been a member of the NYPD for three years and has one prior CCRB complaint that is currently pending investigation (encl. 5A).
- PO Coleman has been a member of the NYPD for three years and has one prior CCRB complaint against him, in which allegations of force and property damage were closed as complainant uncooperative (encl. 5B).
- PO Lovelock has been a member of the NYPD for eight years and has five prior CCRB complaints against him containing 13 allegations, none of which were substantiated (encl. 5C).
- § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- **Stop:** PO Volpi said he saw § 87(2)(b) outside the house and told him to stop. § 87(2)(b) however, did not allege this and denied having any interaction with the police outside the house.
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
- **Guns drawn:** PO Volpi and PO Coleman both stated that they drew their guns during the incident. However, § 87(2)(b) only alleged that PO Volpi pointed his gun at him, and did not mention PO Coleman drawing his gun.

Explanation of Subject Officer Identification

§ 87(2)(b) could not describe the officers well, but said that the officer who pointed his gun at him was not the officer who opened the closet. PO Coleman said he opened the closet, § 87(2)(g)

Recommendations

Allegation A – PO Brian Volpi entered and searched § 87(2)(b) in Queens.

Allegation B – PO Derrick Coleman entered and searched § 87(2)(b) in Queens. It is undisputed that § 87(2)(b) answered the front door of § 87(2)(b) when the officers knocked. § 87(2)(g)

PO Volpi, PO Coleman, and PO Lovelock all stated that § 87(2)(b) said he lived there and that no one was supposed to be in the basement, and that he gave the officers permission to go in the basement and search for intruders (encl. 19C-D, 22C-D, 25C-D). § 87(2)(b) had only a vague memory of the conversation between § 87(2)(b) and the officers, but believed that § 87(2)(b) said they had just moved to the house, and that the officers asked him for the owner's phone number, which he said he did not have (encl. 14D-G). The owner of the house, § 87(2)(b) was asleep during the incident, but had previously let § 87(2)(b) and § 87(2)(b) into the house (encl. 13B, 15D). § 87(2)(b) said he heard from § 87(2)(b) that the officers said they would break down the door if he did not let them in. § 87(2)(b) also told him that the police claimed someone broke into the basement and that he denied this, but the officers insisted on entering anyway.

§ 87(2)(b) and § 87(2)(b) brought a written statement from § 87(2)(b) to their interviews (encl. 16A-B). The statement says that § 87(2)(b) knows § 87(2)(b) and seems to say that § 87(2)(b) opened the front door and the officers ran into the basement, but is very vague on this point. Repeated attempts to contact § 87(2)(b) have been unsuccessful, and the identity of the woman who was with him remains unknown.

§ 87(2)(g) Therefore, it is recommended that **allegations A and B be unsubstantiated.**

Allegation C – PO Brian Volpi pointed his gun at § 87(2)(b)

§ 87(2)(b) alleged that while he was hiding in the closet, one officer opened the closet door and the other officer had his gun pointed at him (encl. 12A, 12C, and 17D-E). PO Volpi acknowledged that he drew his gun, stating that he thought there was a burglary in progress and that § 87(2)(b) might be armed, based on the way he seemed to “grab” at something in his waistband when he saw § 87(2)(b) outside (encl. 19A-D). It is also undisputed that the electricity in the basement was not working, making it dark. PO Volpi denied ever pointing his gun at § 87(2)(b) and said he holstered it as soon as § 87(2)(b) left the closet.

An officer may draw his firearm and point it at a person if “he has a reasonable fear for his own or another’s personal safety.” Police Department v. Gliner, OATH Index No. 955/00 (encl. 1A-T).

§ 87(2)(g)

§ 87(2)(g)

. It is recommended that **allegation C be exonerated.**

Allegation D – PO Brian Volpi used physical force against § 87(2)(b)

Allegation E – PO Derrick Coleman used physical force against § 87(2)(b)

PO Volpi and PO Coleman acknowledged punching § 87(2)(b) but were unsure how many times they did so (encl. 19C-D, 22C-D). They stated that § 87(2)(b) was violently resisting and struck both of them multiple times. Both officers sustained injuries, were hospitalized, and were out of work for several weeks due to these injuries. § 87(2)(b) stated that he was punched eight or more times, and denied attacking the officers.

Officers must use the “minimum necessary force” when performing law enforcement duties. Patrol Guide, Section 203-11 (encl. 2A-B).

§ 87(2)(g)

. It is recommended that **allegations D and E be exonerated.**

Allegation F – PO Charles Lovelock entered and searched § 87(2)(b) in Queens.

Allegation G – Officers entered and searched § 87(2)(g) in Queens.

PO Lovelock did not enter the house at the same time as PO Volpi and PO Coleman. He said that he entered after hearing PO Volpi yell “Chuck 85” and “Stop resisting.” (“Chuck” is PO Lovelock’s nickname.) § 87(2)(g). Other officers responded to a radio call by PO Lovelock and entered shortly after he did. After § 87(2)(b) was taken outside, PO Lovelock and several officers who he could not identify searched the basement with flashlights. No civilians observed this search. PO Lovelock found two daggers that were in plain view, one located near the closet and one located near the exterior door. He vouchered these knives because their locations made him think they might belong to § 87(2)(b) § 87(2)(b). § 87(2)(b) denied having weapons, and § 87(2)(b) – who lives in the basement of § 87(2)(b) § 87(2)(b) but was not present for the incident – said that the daggers belonged to him (encl. 13A). When § 87(2)(b) returned to the basement a few days later, his items had been moved around, but he was also informed that other people had tried to clean up for him.

A warrantless entry into a private residence is permissible in an emergency if the following criteria are met: (i) the police have grounds to believe that an emergency requires an “immediate need for their assistance for the protection of life or property,” (ii) the search is not primarily motivated by an intent to arrest and seize evidence, and (iii) there is a reasonable basis to

associate the area of entry and search with the emergency. People v. Greenleaf, 634 N.Y.S.2d 892 (1995 – 3rd Dept.) (encl. 3A-B). Once inside, officers may conduct a “limited and swift security check” of a residence following a lawful arrest to determine if there are individuals present who might destroy evidence or pose a threat to officers. If they see contraband that they believe to be related to the lawful arrest in “plain view” while conducting the security check, they may seize that contraband. People v. Andino, 681 N.Y.S.2d 518 (1998 – 1st Dept.) (encl. 4A).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that **allegations F and G be exonerated.**

Allegation H – An officer used physical force against § 87(2)(b)

§ 87(2)(b) alleged that as officers were walking him up the stairs after he was handcuffed, one officer pushed him, causing his head to hit the cement stair. PO Volpi, PO Coleman, and PO Lovelock denied doing or observing this. § 87(2)(b) believed that PO Coleman and PO Volpi walked him up the stairs themselves. However, they believed that officers who responded to the call for additional units walked him up the stairs. When shown the photo from the IAB file of blood on the stairs (encl. 8C), the officers stated that they were unsure how it got there, and that it could have belonged to anyone, as PO Volpi and PO Coleman were also bleeding. When shown the photos of § 87(2)(b)'s injuries (encl. 9A-D), no officer knew exactly how they occurred.

§ 87(2)(g)

it is recommended that **allegation H be closed as officer unidentified.**

Pod: 7

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date